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Report Highlights:

The report contains FAS China's understanding of the overseas facility registration process as required by the General Administration of Customs of the People's Republic of China (GACC) in Decree 248. In addition, this report contains attachments of unofficial translations of the Competent Authority and Overseas Enterprise Operation Manuals for the GACC Single Window registration website. In addition, the report contains information from recent training sessions and background information on Decree 248 to facilitate self-registration for U.S. food and agribusiness operations affected by Decree 248.

General Information:

This report provides information related to FAS China's understanding of the General Administration of Customs of the People's Republic of China (GACC) overseas facility registration process. This report includes translations of GACC operation manuals for 1) Competent Authorities; 2) Overseas Enterprises; and 3) a tutorial to the Single Window website self-registration process developed by a third party. In addition, the report has an Excel table attachment that includes the Harmonized System (HS) tariff codes and commodity descriptions affected by Decree 248. FAS China conveys its thanks and appreciation to staff and officers at the Embassies of Australia, Canada, New Zealand, and other colleagues at the United States Embassy in Beijing, China who jointly translated the two GACC manuals.

Decree 248 notified by GACC requires the registration of overseas food production and cold storage facilities that produce or handle specific food products exported to China. The regulation sets out two registration pathways for facilities that produce products within its scope – self-registration, and registration by a competent authority located in the exporting country.

Article 7 of Decree 248 lists 18 product categories that GACC initially indicated would require an overseas facility to register before having product be presented for customs clearance in China. GACC indicated that it expects facilities producing products in those categories to register through a competent authority. In addition, Article 9 of Decree 248 requires the self-registration of overseas facilities that are outside of the 18 product categories. Since publishing the list of 18 product categories GACC has provided and continues making “systems improvements” to a table of China's Harmonized System (HS) tariff codes at the 10-digit level inside the Single Window website that are apparently the actual scope of goods that require registration. The table also provides GACC inspection and quarantine codes and additional descriptions for the products affected by Decree 248. However, there are several food and related products that are not in GACC's table. Moreover, some commodities can fall in or outside the scope of Decree 248 depending upon their end use.

For example, although the HS code 0805100000 for “Oranges, Fresh or Dried” is included on the table, the GACC inspection and quarantine code indicates that only those facilities handling “Oranges, Fresh or Dried” that have also been “candied” or “sweetened” need to self-register. In other words, facilities handling “regular” oranges are not required to register with the GACC under Decree 248.

Another example is sorghum, which appears in the table under the Chinese HS code 1007900000 with GACC inspection and quarantine codes 102 and 103 – for other edible sorghum, inshell and shelled, respectively. GACC is requesting that facilities handling inshell or shelled sorghum for human consumption register that facility through a competent authority. Based on this information, there is no expectation that U.S. exporters of sorghum for non-food use register under Decree 248. However, the United States Government already provides a complete list, based on a previous agreement, of U.S. grain exporting companies to GACC for food and non-food sorghum. Numerous attempts to seek clarification from GACC have gone unanswered.

GACC recently announced that a facility registration number will have to be presented during customs clearance for imports of commodities covered by Decree 248 starting on January 1, 2022. GACC has said that products produced prior to January 1, 2022, will not require facility registration numbers printed on the inner and outer packaging of the products. GACC officials have also said that either the GACC facility registration number or the facility registration number issued by the competent authority in the exporting country must be printed on the inner and outer packaging of products produced on or after January 1, 2022. Because the destination of most products is not known at the time of production or manufacturing, U.S.-based facilities working with these products will need to assess what facility registration number to use on products that could be destined for China.

The Single Window self-registration website requires that facilities attempting to register select a Chinese 10-digit HS code and the 3-digit GACC inspection and quarantine code to identify their product(s). The attached Excel table can be a guide for identifying this information. If a facility cannot identify which HS code may be used, they should consider the description and end-use of their product(s) and/or contact their existing or a potential importer to assess the tariff line that will be used for customs clearance. Companies attempting to self-register should contact GACC staff, identified below, when they have questions about the Single Window system and the applicability of the registration requirements to their establishments and product(s). As China continues making “system improvements” to the Single Window website, facilities attempting to self-register should consult official information and conduct a “Product type Query” in the Single Window website. The attached table and the information in the Single Window website also include a column where GACC indicates if facilities producing that product should self-register or be registered by a competent authority.

The self-registration process requires a significant amount of information. Registrants may find it helpful to review the rest of this report and the attached translation of GACC’s operation manual for enterprises before commencing.

The translation of GACC’s operation manual for competent authorities is attached as a reference.

U.S.-based facilities that GACC is requesting register through a competent authority are encouraged to read the U.S. Food and Drug Administration’s (FDA) Constituent Update dated December 6. It can be found at [this link](#).

FAS China has published the following reports on Decrees 248 and 249 to inform and educate U.S. food and agricultural stakeholders.

- [Decrees 248 and 249 – January 1 Implementation Date \[Public Notice 103\] – December 14, 2021](#)
- [Decree 248 - FDA Constituent Update – December 8, 2021](#)
- [Decree 248 Single Window User Manual and Training - November 30, 2021](#)
- [Decree 248 HS Codes Published in GACC Single Window – November 30, 2021](#)
- [Informing Industry and Supporting Trade Facilitation as China Implements Decrees 248 and 249 – November 10, 2021](#)
- [Decree 248 Information Update – November 19, 2021](#)
- [GACC Issues Interpretation of Decree 248 - November 6, 2021](#)
- [Decree 248 Foreign Facilities Self-Registration Website Launched - November 3, 2021](#)
- [Decree 248 Unofficial Self-Registration Guide for Overseas Food Facilities - November 2, 2021](#)
- [Notes from Information Sessions on GACC Decrees 248 and 249 - October 22, 2021](#)
- [GACC Issues Explanatory Letter on Decree 248 - October 8, 2021](#)
- [Interpretative Guidance on Imported Food Labeling Requirements in Decree 249 - August 13, 2021](#)
- [Decrees 248 and 249 Status Update on Facilities Registration and Food Safety Measures - May 25, 2021](#)
- [Administrative Measures on Import and Export Food Safety - Decree 249 - May 7, 2021](#)
- [Overseas Facilities Registration Regulation - Decree 248 - April 20, 2021](#)
- [China Notified the Draft Administrative Measures on Import and Export Food Safety - December 11, 2020](#)
- [China Notifies Revised Overseas Facilities Registration Regulations as TBT 1522 - December 2, 2020](#)
- [China Released Draft Administrative Measures for Registration of Overseas Producers of Imported Foods - December 6, 2019](#)

Attachments:

[211221 GACC 248 SW Overseas Enterprise Operation Manual Eng Translation.docx](#)

[211221 FAS China Third Party SW Self Registration Guide.docx](#)

[211215 GACC Decree 248 HS Code List English Translation.xlsx](#)

[211223 GACC 248 SW Competent Authority Operation Manual Eng Translation.docx](#)